

# **Pramod S/O Devrao Bankar vs Bharti D/O Balraj Mandpe(Bharti W/O ... on 17 June, 2022**

**Author: Avinash G. Gharote**

**Bench: Avinash G. Gharote**

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27.

IN THE HIGH COURT OF JUDICATURE AT BOMBAY  
NAGPUR BENCH AT NAGPUR  
CRIMINAL REVISION APPLICATION (REVN) NO. 114 OF 2022  
( Pramod S/o Devrao Bankar Vs. Bharti D/o Balraj Mandpe )  
Office Notes, Office Memoranda Court's or Judge's orders  
of Coram, Appearances, Court's  
orders or directions and  
Registrar's orders

Mr. Tejas Deshpande, Advocate for the Applicant.

CORAM: AVINASH G. GHAROTE, J.

DATED : 17th JUNE, 2022.

Heard Mr. Deshpande, learned counsel for the applicant.

2. He contends, that inspite of a Petition No. F-183/2011 under Section 13-B of the Hindu Marriage Act, 1955, filed by the parties before the learned Family Court, Nagpur, which was accepted by the order dated 06.03.2012, the marriage between the applicant and the non-applicant came to be dissolved by mutual consent and on account of a permanent alimony, the non-applicant agreed to receive the sum of Rs. 20,000/- forfeiting her right to future maintenance also. Though he contends, that this was the position as is reflected from the order dated 06.03.2012 (para 7 page

19), the non-applicant again filed an application under Section 125 of the Code of Criminal Procedure claiming maintenance, in which without considering the legal position, the learned Family Court, Nagpur, by the impugned judgment dated 24.01.2022, has directed payment of maintenance of Rs. 2,000/- per month to the petitioner/non-applicant herein from the date of the 27.REVN.114-2022.odt petition i.e. from 17.01.2014 till she performs her second marriage.

3. It is contended, that the provisions of Section 125 of the Code of Criminal Procedure, were not permissible to be invoked by the non-applicant, considering that in proceeding under Section 13-B of the Hindu Marriage Act, she had forfeited her right of maintenance. Reliance is placed upon the order dated 07.02.2020 passed by the Hon'ble Apex Court in Criminal Appeal No. 246/2020. That

apart, reliance is also placed upon Section 125 (4) of the Code of Criminal Procedure, which deprives the wife of any entitlement to receive the maintenance, in case she is living separately by mutual consent.

4. Issue notice to the non-applicant for final disposal of the matter at the stage of admission itself, returnable on 19.07.2022.

5. By way of an interim order, there shall be stay to the payment of arrears, subject to the condition, that 50% of the arrears of maintenance as of today shall be deposited before the Family Court, Nagpur, within a period of three weeks from today and the applicant shall continue to pay the current maintenance at the rate awarded.

Digitally Signed By  
:SHRIKANT DAMODHAR  
BHIMTE

JUDGE

SD. Bhimte  
Signing Date:17.06.2022